

Section 2 in The Sexual Harassment Of Women At Workplace (Prevention, Prohibition And Redressal) Act, 2013

2. Definitions.—

In this Act, unless the context otherwise requires, —(a)“aggrieved woman” means—(i)in relation to a workplace, a woman, of any age whether employed or not, who alleges to have been subjected to any act of sexual harassment by the respondent;(ii)in relation to a dwelling place or house, a woman of any age who is employed in such a dwelling place or house;(b)“appropriate Government” means—(i)in relation to a workplace which is established, owned, controlled or wholly or substantially financed by funds provided directly or indirectly—(A)by the Central Government or the Union territory administration, the Central Government;(B)by the State Government, the State Government;(ii)in relation to any workplace not covered under sub-clause (i) and falling within its territory, the State Government;(c)“Chairperson” means the Chairperson of the Local Complaints Committee nominated under sub-section (1) of section 7;(d)“District Officer” means an officer notified under section 5;(e)“domestic worker” means a woman who is employed to do the household work in any household for remuneration whether in cash or kind, either directly or through any agency on a temporary, permanent, part time or full time basis, but does not include any member of the family of the employer;(f)“employee” means a person employed at a workplace for any work on regular, temporary, ad hoc or daily wage basis, either directly or through an agent, including a contractor, with or, without the knowledge of the principal employer, whether for remuneration or not, or working on a voluntary basis or otherwise, whether the terms of employment are express or implied and includes a co-worker, a contract worker, probationer, trainee, apprentice or called by any other such name;(g)“employer” means—(i)in relation to any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit of the appropriate Government or a local authority, the head of that department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit or such other officer as the appropriate Government or the local authority, as the case may be, may by an order specify in this behalf;(ii)in any workplace not covered under sub-clause (i), any person responsible for the management, supervision and control of the workplace.Explanation. —For the purposes of this sub-clause “management” includes the person or board or committee responsible for formulation and administration of policies for such organisation;(iii)in relation to workplace covered under sub-clauses (i) and (ii), the person discharging contractual obligations with respect to his or her employees;(iv)in relation to a dwelling place or house, a person or a household who employs or benefits from the employment of domestic worker, irrespective of the number, time period or type of such worker employed, or the nature of the employment or activities performed by the domestic worker;(h)“Internal Committee” means an Internal Complaints Committee constituted under section 4;(i)“Local Committee” means the Local Complaints Committee constituted under section 6;(j)“Member” means a Member of the Internal Committee or the Local Committee, as the case may be;(k)“prescribed” means prescribed by rules made under this Act;(l)“Presiding Officer” means the Presiding Officer of the Internal Complaints Committee nominated under sub-section (2) of section 4;(m)“respondent” means a person against whom the aggrieved woman has made a complaint under section 9;(n)“sexual harassment” includes any one or more of the following unwelcome acts or

behavior (whether directly or by implication) namely:—(i)physical contact and advances; or(ii)a demand or request for sexual favours; or(iii)making sexually coloured remarks; or(iv)showing pornography; or(v)any other unwelcome physical, verbal or non-verbal conduct of sexual nature;(o)“workplace” includes—(i)any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit which is established, owned, controlled or wholly or substantially financed by funds provided directly or indirectly by the appropriate Government or the local authority or a Government company or a corporation or a co-operative society;(ii)any private sector organisation or a private venture, undertaking, enterprise, institution, establishment, society, trust, non-governmental organisation, unit or service provider carrying on commercial, professional, vocational, educational, entertainment, industrial, health services or financial activities including production, supply, sale, distribution or service;(iii)hospitals or nursing homes;(iv)any sports institute, stadium, sports complex or competition or games venue, whether residential or not used for training, sports or other activities relating thereto;(v)any place visited by the employee arising out of or during the course of employment including transportation by the employer for undertaking such journey;(vi)a dwelling place or a house;(p)“unorganised sector” in relation to a workplace means an enterprise owned by individuals or self-employed workers and engaged in the production or sale of goods or providing service of any kind whatsoever, and where the enterprise employs workers, the number of such workers is less than ten.